

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3195

By: Humphrey

AS INTRODUCED

An Act relating to district attorneys; amending 21 O.S. 2021, Sections 451, as amended by Section 665, Chapter 486, O.S.L. 2025, 452, 453, as amended by Section 373, Chapter 486, O.S.L. 2025, 454, and 456, as amended by Section 374, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Sections 451, 453, and 456), which relate to crimes relating to evidence; clarifying scope of certain prohibited acts; increasing penalties on certain prohibited acts; amending 21 O.S. 2021, Sections 491, as amended by Section 378, Chapter 486, O.S.L. 2025, 504, as amended by Section 381, Chapter 486, O.S.L. 2025, and 531, as amended by Section 383, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Sections 491, 504, and 531), which relate to perjury offenses; clarifying scope of certain offenses; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 451, as amended by Section 665, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 451), is amended to read as follows:

Section 451. Any district attorney, assistant district attorney, or any other person who, upon any trial, proceedings, inquiry or investigation whatever, authorized by law, offers in

1 evidence, as genuine, any book, paper, document, record, or other
2 instrument in writing, knowing the same to have been forged, or
3 fraudulently altered shall, upon conviction, be guilty of a Class D3
4 felony offense and shall be punished by imprisonment as provided for
5 in subsections B through F of Section 20P of this title.

6 SECTION 2. AMENDATORY 21 O.S. 2021, Section 452, is
7 amended to read as follows:

8 Section 452. Every district attorney, assistant district
9 attorney, or any other person who practices any fraud or deceit, or
10 knowingly makes or exhibits any false statement, representation,
11 token or writing, to any witness or person about to be called as a
12 witness, upon any trial, proceeding, inquiry or investigation
13 whatever, proceeding by authority of law, with intent to affect the
14 testimony of such witness, is guilty of a ~~misdemeanor~~ felony.

15 SECTION 3. AMENDATORY 21 O.S. 2021, Section 453, as
16 amended by Section 373, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
17 2025, Section 453), is amended to read as follows:

18 Section 453. Any district attorney, assistant district
19 attorney, or any other person guilty of falsely preparing any book,
20 paper, record, instrument in writing, or other matter or thing, with
21 intent to produce it, or allow it to be produced as genuine upon any
22 trial, proceeding or inquiry whatever, authorized by law, shall be
23 guilty of a Class D1 felony offense and shall be punished by
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1 imprisonment as provided for in subsections B through F of Section
2 20N of this title.

3 SECTION 4. AMENDATORY 21 O.S. 2021, Section 454, is
4 amended to read as follows:

5 Section 454. Every district attorney, assistant district
6 attorney, or any other person who knowing that any book, paper,
7 record, instrument in writing, or other matter or thing, is about to
8 be produced in evidence upon any trial, proceeding, inquiry or
9 investigation whatever, authorized by law, willfully destroys the
10 same, with intent thereby to prevent the same from being produced,
11 is guilty of a ~~misdemeanor~~ felony.

12 SECTION 5. AMENDATORY 21 O.S. 2021, Section 456, as
13 amended by Section 374, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
14 2025, Section 456), is amended to read as follows:

15 Section 456. Any district attorney, assistant district
16 attorney, or any other person who gives or offers or promises to
17 give to any witness or person about to be called as a witness in any
18 matter whatever, including contests before United States land
19 officers or townsite commissioners, any bribe upon any understanding
20 or agreement that the testimony of such witness shall be influenced,
21 or who attempts by any other means fraudulently to induce any
22 witness to give false testimony shall be guilty of a Class D1 felony
23 offense and shall be punished by imprisonment as provided for in
24 subsections B through F of Section 20N of this title, but if the

1 offer, promise, or bribe is in any way to induce the witness to
2 swear falsely, then it shall be held to be subornation of perjury.

3 SECTION 6. AMENDATORY 21 O.S. 2021, Section 491, as
4 amended by Section 378, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
5 2025, Section 491), is amended to read as follows:

6 Section 491. Whoever, including district attorneys or assistant
7 district attorneys, in a trial, hearing, investigation, deposition,
8 certification or declaration, in which the making or subscribing of
9 a statement is required or authorized by law, makes or subscribes a
10 statement under oath, affirmation or other legally binding assertion
11 that the statement is true, when in fact the witness or declarant
12 does not believe that the statement is true or knows that it is not
13 true or intends thereby to avoid or obstruct the ascertainment of
14 the truth, is guilty of perjury, a Class D1 felony offense. It
15 shall be a defense to the charge of perjury as defined in this
16 section that the statement is true.

17 SECTION 7. AMENDATORY 21 O.S. 2021, Section 504, as
18 amended by Section 381, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
19 2025, Section 504), is amended to read as follows:

20 Section 504. Whoever, including district attorneys and
21 assistant district attorneys, procures another to commit perjury is
22 guilty of perjury by subornation. Perjury by subornation is a Class
23 D1 felony offense, punishable as provided in Section 505 of this
24 title. Whoever, including district attorneys and assistant district

1 attorneys, does any act with the specific intent to commit perjury
2 by subornation but fails to complete that offense is guilty of
3 attempted perjury by subornation.

4 SECTION 8. AMENDATORY 21 O.S. 2021, Section 531, as
5 amended by Section 383, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
6 2025, Section 531), is amended to read as follows:

7 Section 531. Any district attorney, assistant district
8 attorney, sheriff, coroner, clerk of a court, constable or other
9 ministerial officer, and every deputy or subordinate of any
10 ministerial officer, who mutilates, destroys, conceals, erases,
11 obliterates or falsifies any record or paper appertaining to his or
12 her office shall be guilty of a Class D1 felony offense and shall be
13 punished by imprisonment as provided for in subsections B through F
14 of Section 20N of this title.

15 SECTION 9. This act shall become effective November 1, 2026.

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